

## HOUSE FLOOR AMENDMENT EXPLANATION



Bill Number: **HB 2673**

Hernandez C Floor Amendment

---

The C Hernandez Amendment dated 3/3/2026 at 12:24pm:

1. Creates a study committee on inmate mental health services
2. Outlines the membership:
  - a. Appointed by Speaker
    - i. 2 members of the House who are from different political parties.  
One designated as cochair
    - ii. 1 member who represents the regional behavioral health authority
    - iii. 1 member with a family member who is currently in jail or prison and who has a mental health diagnosis
    - iv. 1 member who is a prosecutor with a city, town or county or this state and who prosecutes defendants with mental illness
    - v. 1 member who represents a law enforcement agency from a county with a population of less than 1 million persons
  - b. Appointed by Senate President
    - i. 2 members of the Senate who are from different political parties.  
One designated as cochair
    - ii. 1 member who is employed by a special health care district
    - iii. 1 member who is an attorney with experience representing mentally ill defendants who are in jail or who are sentenced to prison
    - iv. 1 member who represents a law enforcement agency from a county with a population of one million persons or more
  - c. Director of the state department of corrections or the director's designee
  - d. Director of AHCCCS or the director's designee
3. Requires the committee meet at least once each year at a date and time determined by the committee
4. States the members are not eligible for compensation but are eligible for reimbursement
5. Outlines the committee must:

Amendment explanation prepared by M.Bearden

Phone Number 6-5848

mb

3/4/2026

- a. Examine ways to improve the screening process for individuals who are arrested and taken to jail or prison
  - b. Study and recommend ways to improve access to adequate mental health screening for individuals who are in jail or prison
  - c. Study and address ways to improve screenings for mental health risks, including dangers to the individuals and others, for individuals who are in jail or prison
- 6. States that on or before December 31, 2026 and 2027 a report regarding the committee's activities and recommendations to
  - a. The governor
  - b. President of the senate
  - c. Speaker of the House of Representatives
  - d. Copy to the Secretary of State
- 7. Repeals the study committee from and after December 31, 2027

HERNANDEZ C FLOOR AMENDMENT  
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2673  
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 31-126, Arizona Revised Statutes, is amended to  
3 read:

4 31-126. Examination; county prisoners; mental disorders;  
5 definition

6 A. When a person WHO IS confined in the county jail ~~upon~~ ON THE  
7 PERSON'S arrest for or conviction of a ~~misdemeanor~~ CRIME manifests  
8 symptoms of a mental disorder, the sheriff shall ~~notify~~ CAUSE THE PERSON  
9 TO BE EXAMINED WITHIN TWENTY-FOUR HOURS BY a licensed physician ~~who shall~~  
10 ~~examine the person~~. If in the judgment of ~~a~~ THE licensed physician the  
11 person is suffering from a mental disorder, ~~proceedings shall be taken~~ AND  
12 AS A RESULT OF THE MENTAL DISORDER IS A DANGER TO SELF, A DANGER TO OTHERS  
13 OR HAS A PERSISTENT OR ACUTE DISABILITY OR GRAVE DISABILITY, THE SHERIFF  
14 SHALL FILE A PETITION FOR EVALUATION as prescribed by title 36, chapter 5.  
15 IF THE PETITION FOR EVALUATION IS GRANTED, THE SHERIFF SHALL TRANSPORT THE  
16 PRISONER TO THE APPROPRIATE EVALUATION AGENCY. The proceedings under  
17 title 36, chapter 5, ~~shall~~ shall be separate from court proceedings relating to  
18 the ~~misdemeanor charge~~ CRIMINAL CHARGE AGAINST THE PERSON.

19 B. ON ADMISSION TO THE COUNTY JAIL, A PERSON SHALL BE SCREENED TO  
20 DETERMINE WHETHER THE PERSON HAS BEEN DIAGNOSED WITH A MENTAL ILLNESS AND  
21 HAS BEEN RECEIVING TREATMENT FOR THE ILLNESS AND WHETHER THE PERSON HAS  
22 BEEN DESIGNATED AS SERIOUSLY MENTALLY ILL. IF A PRIOR DIAGNOSIS OF MENTAL  
23 ILLNESS HAS BEEN MADE, THE SHERIFF SHALL DETERMINE WHAT, IF ANY, TREATMENT  
24 WAS BEING PROVIDED TO THE PRISONER BEFORE CONFINEMENT IN THE COUNTY JAIL,  
25 INCLUDING SPECIFICALLY WHAT MEDICATIONS THE PRISONER WAS TAKING, AND SHALL  
26 TAKE IMMEDIATE STEPS TO ENSURE THAT THE PRISONER CONTINUES TO RECEIVE  
27 PRESCRIBED MEDICATIONS UNINTERRUPTED WITHIN TWENTY-FOUR HOURS AFTER  
28 ARRIVING IN THE COUNTY JAIL AND, TO THE EXTENT PRACTICABLE, THAT OTHER  
29 TREATMENTS CONTINUE UNINTERRUPTED WHILE THE PRISONER IS IN THE COUNTY  
30 JAIL.

1 C. IF A PRISONER HAS PREVIOUSLY BEEN DIAGNOSED WITH A MENTAL  
2 ILLNESS OR IS DISCOVERED TO HAVE A MENTAL ILLNESS ON EXAMINATION BY A  
3 LICENSED PHYSICIAN BUT HAS NOT BEEN DESIGNATED AS SERIOUSLY MENTALLY ILL,  
4 THE SHERIFF SHALL SUBMIT A REQUEST FOR A SERIOUS MENTAL ILLNESS  
5 DETERMINATION FROM THE APPROPRIATE REGIONAL BEHAVIORAL HEALTH AUTHORITY OR  
6 THE STATE DEPARTMENT OF CORRECTIONS, AS APPROPRIATE, WITHIN SEVEN DAYS  
7 AFTER RECEIVING THE DIAGNOSIS. THE SHERIFF SHALL PROVIDE THE SERIOUS  
8 MENTAL ILLNESS EVALUATION AGENCY WITH ALL AVAILABLE MEDICAL AND  
9 PSYCHIATRIC EVALUATIONS AND REPORTS SO THAT AN ACCURATE SERIOUS MENTAL  
10 ILLNESS DETERMINATION CAN BE MADE.

11 D. FOR THE PURPOSES OF THIS SECTION, "LICENSED PHYSICIAN" HAS THE  
12 SAME MEANING PRESCRIBED IN SECTION 36-501.

13 Sec. 2. Section 31-226, Arizona Revised Statutes, is amended to  
14 read:

15 31-226. Prisoners; mental disorders; procedure for voluntary  
16 or involuntary hospitalization; notice; hearing;  
17 transfer; reports; return to incarceration or  
18 release; costs; definition

19 A. ~~if~~ WITHIN SEVENTY-TWO HOURS AFTER a prisoner WHO IS confined in  
20 any facility operated by the state department of corrections displays  
21 symptoms of mental disorder to such a degree that transfer to the state  
22 hospital or a licensed behavioral health or mental health inpatient  
23 treatment facility operated by the state department of corrections is  
24 necessary to ensure adequate treatment, the psychiatrist of the facility,  
25 or if no psychiatrist is available, the physician at the facility, shall  
26 examine the prisoner and make a written report of the psychiatrist's or  
27 physician's recommendations to the director of the state department of  
28 corrections. On receipt of a report that states that the psychiatrist or  
29 physician finds that the symptoms described in this subsection exist, the  
30 director of the state department of corrections may allow the prisoner to  
31 voluntarily transfer to a licensed behavioral health or mental health  
32 inpatient treatment facility operated by the state department of  
33 corrections if the prisoner is an adult male, to the state hospital or a  
34 licensed behavioral health treatment facility operated by the state  
35 department of corrections if the prisoner is a female or to the state  
36 hospital if the prisoner is a minor. If the patient does not voluntarily  
37 transfer, the director shall file a petition with the superior court in  
38 the county in which the prisoner is incarcerated for transfer for  
39 treatment of the prisoner to the state hospital or a licensed behavioral  
40 health treatment facility operated by the state department of corrections  
41 if the prisoner is a female, to a licensed behavioral health or mental  
42 health inpatient treatment facility operated by the state department of  
43 corrections if the prisoner is an adult male or to the state hospital if  
44 the prisoner is a minor.

45 B. At least ten days before the court conducts the hearing on the  
46 petition for transfer, the state department of corrections shall provide a

1 copy of the petition and written notice of the hearing to the prisoner and  
2 written notice of the prisoner's rights at the hearing.

3 C. At least five days before the hearing, if the prisoner has not  
4 employed counsel, the court shall appoint counsel or an independent  
5 advisor to represent the prisoner at the hearing. On application by the  
6 prisoner the court shall also determine the necessity for any expert  
7 testimony by medical witnesses and authorize any necessary appointment and  
8 compensation for these witnesses at the state's expense. Notice shall be  
9 given to the state hospital if the prisoner is a female or a minor, and  
10 the state hospital shall be provided with an opportunity to participate in  
11 the hearing as an interested party, if it so desires.

12 D. At the hearing, the prisoner or the prisoner's representative  
13 may call witnesses to testify and may confront and cross-examine witnesses  
14 called by the state department of corrections except on a finding of good  
15 cause for not ~~permitting~~ **ALLOWING** such presentation, confrontation or  
16 cross-examination.

17 E. If the prisoner is determined to be suffering from a mental  
18 disorder to such a degree that transfer to the state hospital or a  
19 licensed behavioral health or mental health inpatient treatment facility  
20 operated by the state department of corrections is necessary to ensure  
21 adequate treatment, the court shall order and direct that the prisoner be  
22 transferred for treatment to the state hospital in the legal custody of  
23 the state department of corrections or a licensed behavioral health  
24 treatment facility operated by the state department of corrections if the  
25 prisoner is a female, to a licensed behavioral health or mental health  
26 inpatient treatment facility operated by the state department of  
27 corrections if the prisoner is an adult male or to the state hospital if  
28 the prisoner is a minor. The transfer of the prisoner to the state  
29 hospital shall be made by the state department of corrections. The court  
30 order must be in writing and state the evidence relied on and the reasons  
31 for transferring the prisoner.

32 F. The superintendent of the state hospital shall provide the state  
33 department of corrections with a quarterly report of the condition of a  
34 prisoner **WHO IS** transferred to the state hospital. The superintendent of  
35 the state hospital and the director of the state department of corrections  
36 shall also provide the superior court in the county ~~which~~ **THAT** has  
37 jurisdiction over the transfer proceeding with a quarterly report of the  
38 condition of the prisoner.

39 G. If, in the opinion of the superintendent of the state hospital  
40 or the director of the state department of corrections, the prisoner no  
41 longer suffers from a mental disorder such that placement in the state  
42 hospital or the licensed behavioral health or mental health inpatient  
43 treatment facility operated by the state department of corrections is  
44 necessary to ensure adequate treatment, the superintendent of the state  
45 hospital or the director of the state department of corrections shall  
46 order the prisoner to a licensed behavioral health treatment facility  
47 operated by the state department of corrections or returned to a prison

1 facility to serve the prisoner's unexpired term, and the period the  
2 prisoner was confined in the state hospital or the behavioral health or  
3 mental health treatment agency shall be considered as though incarcerated  
4 in a state department of corrections facility. If the term of  
5 imprisonment expires during the time the prisoner is confined in the state  
6 hospital or the behavioral health or mental health inpatient treatment  
7 facility, the director of the state department of corrections shall issue  
8 to the prisoner an absolute discharge at that time, and the prisoner's  
9 rights to release from the hospital are as provided in title 36,  
10 chapter 5.

11 H. A PETITION FOR court-ordered evaluation ~~may~~ SHALL be ~~made~~ FILED  
12 in accordance with title 36, chapter 5, article 4 if, within one hundred  
13 twenty days of the prisoner's scheduled release from prison or during any  
14 time that the prisoner is on release status, the prisoner appears to be,  
15 as a result of a mental disorder, a danger to self or A DANGER to others,  
16 ~~or is a prisoner with a grave disability~~ OR HAS A PERSISTENT OR ACUTE  
17 DISABILITY OR GRAVE DISABILITY, and is EITHER UNABLE OR unwilling to  
18 undergo a voluntary evaluation. For the purposes of this section, an  
19 inpatient mental health treatment facility operated by the state  
20 department of corrections is authorized to act as a screening agency. If  
21 the court orders inpatient evaluation, ~~the order shall take effect on the~~  
22 ~~day of the prisoner's scheduled release,~~ THE EVALUATION SHALL TAKE PLACE  
23 WITHIN SEVENTY-TWO HOURS WITHIN THE STATE DEPARTMENT OF CORRECTIONS or, if  
24 the prisoner is on release status, ~~on a date determined by the court, and~~  
25 the state department of corrections shall ~~deliver~~ TRANSPORT the prisoner  
26 to the evaluation agency. THE EVALUATION MUST TAKE PLACE IN A LOCATION  
27 THAT PROVIDES CONFIDENTIAL COMMUNICATION AND BE DONE BY A BEHAVIORAL  
28 HEALTH PROFESSIONAL WHO IS QUALIFIED TO MAKE THE EVALUATION. Thereafter,  
29 all further evaluation and treatment shall be in accordance with the  
30 provisions of title 36, chapter 5, ~~as they~~ THAT pertain to civil patients.

31 I. The state department of corrections shall pay all costs incurred  
32 for the prisoner during the term of the prisoner's sentence.

33 J. The county in which the court is located shall be reimbursed for  
34 expenses of the proceedings incurred by the county in accordance with  
35 section 31-227.

36 K. ~~As used in~~ FOR THE PURPOSES OF this section, "mental disorder"  
37 has the same meaning prescribed in section 36-501.

38 Sec. 3. Title 31, chapter 2, article 2, Arizona Revised Statutes,  
39 is amended by adding section 31-226.02, to read:

40 31-226.02. Prisoners; mental disorders; procedures for  
41 custody transfer; treatment plan; definition

42 A. FOR ANY PRISONER WHO HAS BEEN DIAGNOSED WITH A MENTAL DISORDER  
43 OR WHO IS MANIFESTING THE SYMPTOMS OF A MENTAL DISORDER, ON CONVICTION FOR  
44 A CRIME THAT REQUIRES SERVING A SENTENCE IN A FACILITY UNDER THE  
45 JURISDICTION OF THE DEPARTMENT, BEFORE THE PRISONER IS DELIVERED INTO THE  
46 CUSTODY OF THE DEPARTMENT, THE MEDICAL DIRECTOR OF THE DEPARTMENT SHALL  
47 ENSURE THAT ALL OF THE FOLLOWING OCCUR:

1        1. THE PRISONER IS EVALUATED BY A PSYCHIATRIST TO DETERMINE WHETHER  
2 THE PRISONER SUFFERS OR CONTINUES TO SUFFER FROM A MENTAL DISORDER AND TO  
3 DETERMINE A WRITTEN TREATMENT PLAN FOR THE PRISONER WHILE INCARCERATED  
4 UNDER THE DEPARTMENT'S JURISDICTION. THE TREATMENT PLAN SHALL INCLUDE, AT  
5 A MINIMUM:

6        (a) THE IDENTIFICATION OF ANY MEDICATIONS THE PRISONER IS CURRENTLY  
7 PRESCRIBED OR SHOULD BE PRESCRIBED TO STABILIZE OR IMPROVE THE MENTAL  
8 DISORDER AND WHETHER THE MEDICATIONS NEED TO BE ADMINISTERED UNDER CERTAIN  
9 CONDITIONS OR REQUIREMENTS, SUCH AS A "WATCH SWALLOW" INSTRUCTION OR BY  
10 INJECTION, TO ENSURE ADHERENCE TO THE TREATMENT REGIMEN.

11        (b) THE IDENTIFICATION OF ANY OTHER CHRONIC MEDICAL CONDITION,  
12 INCLUDING DIABETES, EPILEPSY OR CARDIOVASCULAR DISORDER, AND ANY  
13 MEDICATION NECESSARY TO ADDRESS ANY CHRONIC MEDICAL CONDITION.

14        (c) AN ASSESSMENT OF THE APPROPRIATE PLACEMENT FOR THE PRISONER IN  
15 THE DEPARTMENT'S SYSTEM, INCLUDING THE NEED TO BE SEPARATED FROM THE  
16 GENERAL PRISON POPULATION IN ORDER TO AVOID HARM TO THE PRISONER, OTHER  
17 PRISONERS OR STAFF.

18        (d) ANY OTHER PROVISIONS THAT THE MEDICAL DIRECTOR OR THE COURT  
19 BELIEVES ARE NECESSARY TO ADEQUATELY ADDRESS THE PRISONER'S MENTAL  
20 DISORDER OR TO PROTECT THE WELL-BEING OF THE PRISONER AND OTHER PERSONS  
21 WHILE THE PRISONER IS INCARCERATED.

22        2. THE PRISONER IS EVALUATED FOR A DETERMINATION OF A SERIOUS  
23 MENTAL ILLNESS DESIGNATION AND ENTITLEMENT TO ADDITIONAL BENEFITS THAT  
24 COME WITH THIS DESIGNATION.

25        3. THE WRITTEN TREATMENT PLAN IS APPROVED BY THE COURT AND  
26 ACCOMPANIES THE PRISONER WHEN TRANSFERRED TO THE DEPARTMENT TO BEGIN  
27 SERVING A SENTENCE PURSUANT TO AN ORDER OF THE COURT.

28        B. ON TRANSFER TO THE DEPARTMENT TO BEGIN SERVING A SENTENCE OF  
29 INCARCERATION, THE MEDICAL DIRECTOR OF THE DEPARTMENT SHALL IDENTIFY THE  
30 PRISONER IN SOME EASILY RECOGNIZABLE MANNER INDICATING THAT THE PRISONER  
31 HAS BEEN IDENTIFIED AS A PRISONER NEEDING PARTICULAR ATTENTION BECAUSE OF  
32 A MEDICAL, MENTAL HEALTH OR SUPERVISION NEED.

33        C. DURING THE PRISONER'S TERM OF INCARCERATION:

34        1. THE WRITTEN TREATMENT PLAN SHALL BE MANAGED AND AMENDED, WHEN  
35 NECESSARY, IN ACCORDANCE WITH BEST EVIDENCE-BASED PRACTICES IN ORDER TO  
36 STABILIZE OR IMPROVE THE PRISONER'S MEDICAL OR MENTAL HEALTH CONDITIONS.

37        2. THE DEPARTMENT SHALL GIVE THE PRISONER'S MEDICAL RECORDS,  
38 INCLUDING MENTAL HEALTH RECORDS, TO THE PRISONER'S GUARDIAN OR DESIGNEE IF  
39 THE PRISONER HAS A GUARDIAN OR DESIGNATES A PERSON TO ACCESS THE RECORDS.

40        D. FOR THE PURPOSES OF THIS SECTION, "MENTAL DISORDER" HAS THE SAME  
41 MEANING PRESCRIBED IN SECTION 36-501. END\_STATUTE

42        Sec. 4. Section 36-521, Arizona Revised Statutes, is amended to  
43 read:

44        36-521. Petition for court-ordered evaluation; preparation  
45        procedures for prepetition screening

46        A. On receiving the application for evaluation, the screening  
47 agency, before filing a petition for court-ordered evaluation, shall

1 provide prepetition screening within forty-eight hours excluding weekends  
2 and holidays when possible to determine whether there is reasonable cause  
3 to believe the person has a persistent or acute disability or a grave  
4 disability or is a danger to self or others as a result of a mental  
5 disorder, and whether the person will voluntarily receive evaluation at a  
6 scheduled time and place.

7       B. After prepetition screening has been completed, the screening  
8 agency shall prepare a report of opinions and conclusions. If prepetition  
9 screening is not possible, the screening agency shall prepare a report  
10 giving reasons why the PREPETITION screening was not possible and  
11 including opinions and conclusions of staff members who attempted to  
12 conduct prepetition screening or otherwise investigated the matter.

13       C. If the prepetition screening agency determines that the  
14 application for evaluation is to be denied, the denial shall be stated in  
15 writing on the application form and shall be reviewed and confirmed by the  
16 medical director of the screening agency or the medical director's  
17 designee. If the screening agency determines that although the person  
18 does not currently meet the criteria for court-ordered evaluation, there  
19 are reasonable grounds to believe that the person has a mental disorder,  
20 is in need of further evaluation or treatment and is able and willing to  
21 pursue private or public evaluation or treatment services available to the  
22 person in the community, the screening agency shall assist the proposed  
23 patient in finding specific evaluation or treatment services in the  
24 proposed patient's area and, if requested, make a direct referral to a  
25 person, agency or organization providing behavioral health services for  
26 the purpose of evaluation and treatment.

27       D. If, based on the allegations of the applicant for the  
28 court-ordered evaluation and the prepetition screening report or other  
29 information obtained while attempting to conduct a prepetition screening,  
30 the SCREENING agency determines that there is reasonable cause to believe  
31 that the proposed patient is, as a result of mental disorder, a danger to  
32 self or to others or has a persistent or acute disability or a grave  
33 disability and that the proposed patient is unable or unwilling to  
34 voluntarily receive evaluation or is likely to present a danger to self or  
35 to others, has a grave disability or will further deteriorate before  
36 receiving a voluntary evaluation, the SCREENING agency shall prepare a  
37 petition for court-ordered evaluation and shall file the petition, which  
38 shall be signed by the person who prepared the petition unless the county  
39 attorney performs these functions. If the SCREENING agency determines  
40 that there is reasonable cause to believe that the person is in such a  
41 condition that without immediate hospitalization he is likely to harm  
42 himself or others, the SCREENING agency shall take all reasonable steps to  
43 procure such hospitalization on an emergency basis.

44       E. The agency may contact the county attorney in order to obtain  
45 assistance in preparing the petition for court-ordered evaluation, and the  
46 SCREENING agency may request the advice and judgment of the county



1 attorney in reaching a decision as to whether the court-ordered evaluation  
2 is justified.

3 F. The county attorney may prepare or sign or file the petition if  
4 a court has ordered the county attorney to prepare the petition, OR A  
5 SHERIFF MAY FILE THE PETITION PURSUANT TO SECTION 31-126, SUBSECTION A.

6 G. If a petition for court-ordered evaluation alleges danger to  
7 others as described in section 36-501, the screening agency, before filing  
8 such a petition, shall contact the county attorney for a review of the  
9 petition. The county attorney shall examine the petition and make one of  
10 the following written recommendations:

11 1. That a criminal investigation is warranted.

12 2. That the screening agency shall file the petition.

13 3. That no further proceedings are warranted. The screening agency  
14 shall consider the recommendation in determining whether a court-ordered  
15 evaluation is justified and shall include the recommendation with the  
16 petition if the SCREENING agency decides to file the petition with the  
17 court.

18 H. The petition shall be made in the form and manner prescribed by  
19 the director.

20 I. If a petition for court-ordered evaluation is filed by a  
21 prosecutor pursuant to section 13-4517, a prior application for  
22 court-ordered evaluation or prescreening is not necessary.

23 <<Sec. 5. Study committee on inmate mental health services;  
24 membership; duties; reports; delayed repeal

25 [A. The study committee on inmate mental health services is  
26 established consisting of the following members:

27 1. Two members of the house of representatives who are from  
28 different political parties and who are appointed by the speaker of the  
29 house of representatives. The speaker of the house of representatives  
30 shall designate one of these members to serve as cochairperson of the  
31 committee.

32 2. Two members of the senate who are from different political  
33 parties and who are appointed by president of the senate. The president  
34 of the senate shall designate one member to serve as cochairperson of the  
35 committee.

36 3. The director of the state department of corrections or the  
37 director's designee.

38 4. The director of the Arizona health care cost containment system  
39 administration or the director's designee.

40 5. The following members who are appointed by the speaker of the  
41 house of representatives:

42 (a) One member who represents the regional behavioral health  
43 authority.

44 (b) One member with a family member who is currently in jail or  
45 prison and who has a mental health diagnosis.

46 (c) One member who is a prosecutor with a city, town or county or  
47 this state and who prosecutes defendants with mental illness.

1       (d) One member who represents a law enforcement agency from a  
2 county with a population of less than one million persons.

3       6. The following members who are appointed by the president of the  
4 senate:

5       (a) One member who is employed by a special health care district.

6       (b) One member who is an attorney with experience representing  
7 mentally ill defendants who are in jail or who are sentenced to prison.

8       (c) One member who represents a law enforcement agency from a  
9 county with a population of one million persons or more.

10       B. The committee shall meet at least once each year at a date and  
11 time determined by the committee.

12       C. Committee members are not eligible to receive compensation but  
13 are eligible for reimbursement of expenses under title 38, chapter 4,  
14 article 2, Arizona Revised Statutes.

15       D. The committee shall:

16       1. Examine ways to improve the screening process for individuals  
17 who are arrested and taken to jail or prison.

18       2. Study and recommend ways to improve access to adequate mental  
19 health screenings for individuals who are in jail or prison.

20       3. Study and address ways to improve screenings for mental health  
21 risks, including dangers to the individual and others, for individuals who  
22 are in jail or prison.

23       4. On or before December 31, 2026 and December 31, 2027, submit a  
24 report regarding the committee's activities and recommendations to the  
25 governor, the president of the senate and the speaker of the house of  
26 representatives and provide a copy of this report to the secretary of  
27 state.

28       E. This section is repealed from and after December 31, 2027.]>>  
29

30 Enroll and engross to conform

31 Amend title to conform

CONSUELO HERNANDEZ

2673FloorHERNANDEZ C.docx

03/03/2026

12:24 PM

C: AH

130QJFW0J